

2018 SCC OnLine All 3262

In the High Court of Allahabad
(BEFORE SHASHI KANT GUPTA AND RAJIV GUPTA, JJ.)

Bharat Bhati Petitioner;

v.

State of U.P. And 2 Others Respondents.

Writ - C No. - 22326 of 2018

Decided on July 3, 2018

Counsel for Petitioner:- Awadhesh Kumar Mishra

Counsel for Respondent:- C.S.C., Chandan Agarwal

ORDER

1. This writ petition has been filed, inter alia, for the following reliefs:

(a) *Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 3 that he will hear and consider the representation of the petitioner dated 05.06.2018 made by the petitioner in furtherance of a electricity checking report dated 23.05.2018 to consider the ownership date of property with effect from the date of agreement to sale/possession i.e. 27.03.2018.*

(b) *Issue a writ, order or direction to the respondent no. 3 to revised the assessment no. 2514 dated 06.06.2018 from the date of ownership of the petitioner 27.03.2018 to date of checking 23.05.2018 for 55 days and multiply by 18 hours.*

2. Perusal of the record reveals that a notice dated 06.06.2018 under Sub-clause B of Clause 6.8 of the Electricity Supply Code has been issued by the Electricity Department to the petitioner directing him to file objection if any to the provisional assessment and the charges contained in the notice. The record further reveals that in pursuance of the aforesaid notice the petitioner has not yet filed his objection.

3. The main contention of the learned counsel for the petitioner is that in fact the property in dispute was rented to one Mohd. Raza @ Raja son of Mahboob Ali and the same is in his occupation, as such, the aforesaid provisional assessment is illegal and without jurisdiction. The petitioner can not be made liable for the theft committed by the tenants.

4. Heard learned counsel for the parties and perused the record.

5. The present writ petition has been filed mainly against the show cause notice dated 06.06.2018 issued by the Electricity Department to

the petitioner. The petitioner has ample opportunity to take all pleas before the appropriate authority. In case, any objection is filed by the petitioner before the appropriate authority within a period of 15 days from today, the appropriate authority shall dispose of the objection by a speaking order if not already passed in accordance with law after taking into consideration the pleas raised by the petitioner.

6. With this observation, the present writ petition stands finally disposed of.

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